

**ADDENDUM FORM
TO PURCHASE AND SALE CONTRACT ~ PRICE ESCALATION AGREEMENT**

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the Monroe County Bar Association, and those County Bar Associations that have approved its use.

**BROKER COMMISSIONS AND COMPENSATION ARE NOT SET BY LAW
OR BY ANY REALTOR® ASSOCIATION OR MULTIPLE LISTING SERVICE AND ARE FULLY NEGOTIABLE.**

When signed, this document becomes legally binding on you. You may wish to consult your attorney.

SELLER _____ BUYER _____

SELLER _____ BUYER _____

PROPERTY _____

The terms contained herein are for the use and purpose of obtaining a mutually agreeable purchase price. The following are price escalation terms made a part of the Contract dated _____ for the above-referenced property:

- A.** In the event the Seller receives multiple bona fide offers to purchase the property, with terms acceptable to the Seller, and at a purchase price equal to or greater than the Purchase Price in the Contract, then the Purchase Price in this offer shall automatically increase in increments of \$ _____ (“Escalating Factor”), in excess of the highest competing offer’s Purchase Price less any Seller Concession and/or other seller credits, but not to exceed a maximum purchase price of \$ _____ (“Cap”).
- B.** In the event of an escalation, Seller is to provide documentation, including acceptable proof of competing offer, along with any pre-approval, pre-qualification, or proof of funds attached, to justify the sales price increase.
- C.** The Buyer acknowledges that the Escalating Factor of this offer and the Escalating Factors of other offers may result in multiple escalations and, in some cases, escalation to the Cap.
- D.** This Price Escalation Agreement shall expire upon acceptance of this Contract.

SELLER _____ DATE _____ BUYER _____ DATE _____

SELLER _____ DATE _____ BUYER _____ DATE _____

ACKNOWLEDGMENT OF FINAL PURCHASE PRICE (Check one):

- ☐ Price Escalation Agreement was not enacted; the offer Purchase Price stands at \$ _____.
- ☐ The Seller has provided satisfactory documentation, and as a result of this Price Escalation Agreement it is understood that the final Purchase Price shall be \$ _____.

SELLER _____ DATE _____ BUYER _____ DATE _____

SELLER _____ DATE _____ BUYER _____ DATE _____